

**JUSTIFICATION AND APPROVAL FOR OTHER THAN FULL AND OPEN
COMPETITION (OVERSEAS CONTRACTING ACTIVITIES)**

PR15066016 - FAC - Replace burnt panel door

1. I recommend that Embassy **Budapest** use other than full and open competition for the acquisition of **Replace burnt panel door**. The estimated cost is **\$135,000**.
2. Nature and/or description of the action being approved.

The MCC-507 electrical cabinet, located in the North Chancery Attic Room 507 (also known as Mechanical Room 1), caught fire on December 9, 2024 due to a missed preventative maintenance activity by the PM contractor. While the panel has been cleaned, it still contains a significant amount of carbon particles, posing an ongoing risk of short-circuiting. Furthermore, the panel's uninterruptible power supply (UPS) has melted, leaving it without a backup power source.

3. A description of the supplies or services required to meet the agency's needs.

The contractor is required to construct a new panel in accordance with the as-built drawings, replicating the existing MCC-507. The new panel must then be transported to the Post, the old panel safely demolished while ensuring the continuous operation of the 24-hour chiller system with pumps, and the new panel installed. Additionally, all necessary QA/QC testing and commissioning must be completed.

4. An identification of the statutory authority permitting other than full and open competition.

FAR 6.302-2 Unusual and compelling urgency.

5. A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited (for sole source acquisitions; also required for unusual and compelling urgency where more than one offer will not be solicited).

As the panel remains at continuous risk of short-circuiting, while the chiller pumps must operate to maintain circulation and ensure the 24-hour chiller system keeps all servers in the building cool, this situation is deemed urgent. The contractor originally designed, installed, and commissioned the existing panel. Given their familiarity with the system, units, and site location, they possess the necessary expertise and capacity to complete the work in the shortest possible timeframe, thereby minimizing the risk of cooling system downtime. This approach serves the best interests of the U.S. Government and is the quickest solution to ensure life-safety of USG personnel and protection of USG building assets.

6. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable. The description should include whether a FedBizOpps notice was or will be publicized, as required by FAR 5.2, and if not, which exception under FAR 5.202 applies (e.g., blanket waiver provided in DOSAR 605.202-70).

The JOFOC is to be published at SAM.gov per the regulations.

7. A determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.
8. A description of the market survey conducted and the results or a statement of the reasons a market survey was not conducted.

Survey was not conducted; see section 4-5. However market familiarity and prior service history indicate the price to be fair and reasonable.

9. Any other facts supporting the use of other than full and open competition.
 - This is a critical life and building safety issue.
10. A listing of sources, if any that expressed, in writing, an interest in the acquisition.
 - None to date
11. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required.
 - Not applicable at this time given the urgency of the issue.

CERTIFICATIONS

I certify that this justification is accurate and contains complete data necessary to support the recommendation for other than full and open competition.

April 03, 2025

Date



Name

BAS Engineer EUR/BUD/MGT/FAC

APPROVALS

I approve other than full and open competition for this order.

Date

Eric C. Moore, Contracting Officer

